

1 **SENATE FLOOR VERSION**

2 February 19, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 216

By: Bergstrom

6
7 An Act relating to driver licenses; providing for
8 extension of certain driver license; requiring
9 mailing of driver license to certain individual;
10 requiring Service Oklahoma and Department of
11 Corrections to enter into certain agreement;
12 authorizing rule promulgation; amending 47 O.S. 2021,
13 Section 6-212, as amended by Section 73, Chapter 282,
14 O.S.L. 2022 (47 O.S. Supp. 2024, Section 6-212),
15 which relates to provisional licenses; modifying
16 provisions related to license reinstatement;
17 requiring certain notification; prohibiting certain
18 eligibility; requiring Service Oklahoma to enter into
19 certain agreements; requiring the Department of
20 Corrections to provide certain assistance;
21 authorizing promulgation of rules; removing obsolete
22 language; amending 57 O.S. 2021, Section 513.3, as
23 amended by Section 1, Chapter 64, O.S.L. 2022 (57
24 O.S. Supp. 2024, Section 513.3), which relates to the
Sarah Stitt Act; updating statutory reference;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 6-205.3 of Title 47, unless
there is created a duplication in numbering, reads as follows:

1 A. Any person who held a valid, unexpired Oklahoma driver
2 license upon imprisonment in the custody of the Department of
3 Corrections which expired within the last three (3) years during the
4 person's term of imprisonment, shall have the expiration date of his
5 or her driver license extended for a period of six (6) months after
6 he or she is released from the custody of the Department of
7 Corrections. Upon release from custody, Service Oklahoma shall mail
8 a replacement driver license to an address provided by the person.

9 B. Service Oklahoma and the Department of Corrections shall
10 enter into a data-sharing agreement to facilitate the exchange of
11 necessary data to carry out the provisions of this section.

12 C. Service Oklahoma and the Department of Corrections are
13 authorized to promulgate rules and procedures to implement the
14 provisions of this section.

15 SECTION 2. AMENDATORY 47 O.S. 2021, Section 6-212, as
16 amended by Section 73, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2024,
17 Section 6-212), is amended to read as follows:

18 Section 6-212. A. Service Oklahoma shall not assess and
19 collect multiple reinstatement fees when reinstating the driving
20 privilege of any person having more than one suspension or
21 revocation affecting the person's driving privilege at the time of
22 reinstatement.

23 B. Service Oklahoma shall:
24

1 1. Suspend or revoke a person's driving privilege as delineated
2 within the Oklahoma Statutes; and

3 2. Require any person having more than one suspension or
4 revocation affecting the person's driving privilege to meet the
5 statutory requirements for each action as a condition precedent to
6 the reinstatement of any driving privilege. Provided, however,
7 reinstatement fees shall not be cumulative, and a single
8 reinstatement fee, as provided for in subsection C of this section,
9 shall be paid for all suspensions or revocations as shown by Service
10 Oklahoma's records at the time of reinstatement.

11 C. Whenever a person's privilege to operate a motor vehicle is
12 suspended or revoked pursuant to any provision as authorized by the
13 Oklahoma Statutes, the license or privilege to operate a motor
14 vehicle shall remain under suspension or revocation and shall not be
15 reinstated until:

16 1. The expiration of each such revocation or suspension order;

17 2. The person has paid to Service Oklahoma:

18 a. if such privilege is suspended or revoked pursuant to
19 Section 1115.5 of Title 22 of the Oklahoma Statutes or
20 pursuant to any provisions of this title, except as
21 provided in subparagraph b of this paragraph, a
22 processing fee of Twenty-five Dollars (\$25.00) for
23 each such suspension or revocation as shown by Service
24 Oklahoma's records, or

- b. (1) if such privilege is suspended or revoked pursuant to the provisions of Section 6-205, 6-205.1, 7-612, 753, 754 or 761 of this title or pursuant to subsection A of Section 7-605 of this title for a conviction for failure to maintain the mandatory motor vehicle insurance required by law or pursuant to subsection B of Section 6-206 of this title for a suspension other than for points accumulation, a processing fee of Seventy-five Dollars (\$75.00) for each such suspension or revocation as shown by Service Oklahoma's records, and a special assessment trauma-care fee of Two Hundred Dollars (\$200.00) to be deposited into the Trauma Care Assistance Revolving Fund created in Section 1-2530.9 of Title 63 of the Oklahoma Statutes, for each suspension or revocation as shown by the records of Service Oklahoma, and
- (2) in addition to any other fees required by this section, if such privilege is suspended or revoked pursuant to an arrest ~~on or after~~ ~~November 1, 2008,~~ under the provisions of paragraph 2 or 6 of subsection A of Section 6-205 of this title or of Section 753, 754 or 761 of

1 this title, a fee of Fifteen Dollars (\$15.00),
2 which shall be apportioned pursuant to the
3 provisions of Section 3-460 of Title 43A of the
4 Oklahoma Statutes; and

5 3. The person has paid to Service Oklahoma a single
6 reinstatement fee of, ~~beginning on July 1, 2013, and any year~~
7 ~~thereafter~~, Twenty-five Dollars (\$25.00).

8 Service Oklahoma shall notify the license holder within three (3)
9 days of reinstatement that the license holder shall apply for a new
10 driver license pursuant to subsection A of Section 6-209 of this
11 title.

12 D. Service Oklahoma ~~is hereby authorized to~~ shall enter into
13 agreements with persons whose license to operate a motor vehicle or
14 commercial motor vehicle has been suspended or revoked, for issuance
15 of a provisional license subject to any restrictions imposed by law
16 or a court order. The provisional license would allow such persons
17 to drive from 6:00 a.m. to 11:59 p.m. Driving privileges for a
18 provisional license are limited from 12:00 a.m. to 5:59 a.m. to
19 driving:

20 1. Between their place of residence and their place of
21 employment or potential employment;

22 2. During the scope and course of their employment;

23 3. Between their place of residence and a college, university
24 or technology center;

1 4. Between their place of residence and their child's school or
2 day care provider;

3 5. Between their place of residence and a place of worship; or

4 6. Between their place of residence and any court-ordered
5 treatment program,

6 with the condition that such persons pay a minimum total of Five

7 Dollars (\$5.00) per month toward the satisfaction of outstanding

8 fees, including, but not limited to, provisional license fees,

9 warrant fees, court costs or fees, driver license or commercial

10 driver license reinstatement fees. Service Oklahoma may suspend or

11 revoke a provisional license pursuant to this section if the person

12 fails to honor the payment plan. The person may re-enroll in the

13 provisional driver license program.

14 E. Any person convicted of an offense specified in paragraph 1,
15 4, or 8 of subsection A of Section 6-205 of this title shall not be
16 eligible for a provisional license.

17 F. Any violation of law by the person holding the provisional
18 license that would result in the suspension or revocation of a
19 driver license, except for the failure to pay fines, fees, or other
20 financial obligations if the person is participating in a payment
21 plan, shall result in the revocation of the provisional license.

22 ~~F.~~ G. Eligibility for a provisional license shall not take into
23 consideration any outstanding fines and fees owed, including, but
24

1 not limited to, warrant fees, court costs or fees, driver license or
2 commercial driver license reinstatement fees.

3 ~~G.~~ H. A person with a suspended driver license shall not have
4 to take a driver license test to be eligible for a provisional
5 license~~+~~, provided~~7~~ the suspended license has not expired.

6 ~~H.~~ I. The Department of Corrections shall provide inmates with
7 relevant documentation to obtain a provisional license as provided
8 in subsection D of this section before being released from custody.
9 The Department of Corrections shall develop rules and procedures
10 necessary to implement the provisions of this subsection.

11 J. Service Oklahoma shall develop rules and procedures
12 necessary to implement the provisions of this section except as
13 otherwise provided by this title.

14 ~~I. Effective July 1, 2002, and for~~

15 K. For each fiscal year ~~thereafter~~:

16 1. Two Hundred Fifty Thousand Dollars (\$250,000.00) of all
17 monies collected each month pursuant to this section shall be
18 apportioned as provided in Section 1104 of this title, except as
19 otherwise provided in this section; and

20 2. Except as otherwise provided in this section, all other
21 monies collected in excess of Two Hundred Fifty Thousand Dollars
22 (\$250,000.00) each month shall be deposited in the General Revenue
23 Fund.
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SECTION 3. AMENDATORY 57 O.S. 2021, Section 513.3, as amended by Section 1, Chapter 64, O.S.L. 2022 (57 O.S. Supp. 2024, Section 513.3), is amended to read as follows:

Section 513.3. A. When any inmate shall be discharged from an institution of the Department of Corrections and the intended residence designated by the inmate is within this state, the Department of Corrections shall provide the inmate with relevant documentation to assist the inmate in obtaining post-release employment and shall coordinate with ~~the Department of Public Safety~~ Service Oklahoma to provide a REAL ID Noncompliant Identification Card if the inmate does not have a current state-issued identification card or driver license.

B. 1. Within nine (9) months prior to the release of an inmate from custody, the Department of Corrections shall identify whether the inmate has a current form of state identification and begin the process of gathering the documentation required for the issuance of a REAL ID Noncompliant Identification Card pursuant to Section 6-105.3 of Title 47 of the Oklahoma Statutes. If an inmate has any valid form of a state-issued identification card or driver license, the inmate may avail himself or herself of the provisions of this section.

2. The Department of Corrections may utilize any funds available to cover the costs associated with the implementation and administration of this section and the purchase of REAL ID

1 Noncompliant Identification Cards, including, but not limited to,
2 inmate trust funds, existing funds of the Department of Corrections,
3 and donations.

4 3. The provisions of this section shall apply only to inmates
5 who may receive a state-issued identification card pursuant to
6 Section 1550.42 of Title 21 of the Oklahoma Statutes.

7 C. For purposes of assisting an inmate in obtaining post-
8 release employment, the Department of Corrections shall provide the
9 inmate with the following documentation:

10 1. A copy of the vocational training record of the inmate, if
11 applicable;

12 2. A copy of the work record of the inmate, if applicable;

13 3. A certified copy of the birth certificate of the inmate, if
14 obtainable;

15 4. A Social Security card or a replacement Social Security card
16 of the inmate, if obtainable;

17 5. A resume that includes any trade learned by the inmate and
18 the proficiency at that trade by the inmate; and

19 6. Documentation that the inmate has completed a practice job
20 interview.

21 In addition, the Department shall notify the inmate if he or she
22 is eligible to apply for a license from a state entity charged with
23 oversight of an occupational license or certification.

1 D. The following categories of inmates are not required to
2 complete resumes or practice job interviews prior to their release
3 from incarceration:

4 1. Inmates sixty-five (65) years of age or older;

5 2. Inmates releasing to medical parole or discharging from a
6 prison infirmary setting;

7 3. Inmates releasing from a Department of Corrections Mental
8 Health Unit;

9 4. Inmates releasing to the custody of another jurisdiction on
10 a warrant or detainer;

11 5. Inmates returning to community supervision from an
12 intermediate revocation facility; and

13 6. Inmates that the Department determines would be physically
14 or mentally unable to return to the workforce upon release from
15 incarceration.

16 E. The Department of Corrections is authorized to promulgate
17 rules and procedures to implement the provisions of this section.

18 SECTION 4. This act shall become effective July 1, 2026.

19 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
20 February 19, 2025 - DO PASS AS AMENDED BY CS
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